

9. *Hitt v. Hitt*, Case No. CIVSB2308875  
Motion to be Relieved as Counsel for Defendant  
8/27/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion by Krosenberger Rosenfeld, LLP, to be relieved as counsel for Defendant.

Here, the Krosenberger firm seeks to be relieved as counsel for Defendant. The motion is supported by a declaration establishing good cause pursuant to rule 1.16(b) of the Rules of Court. The Court is inclined to **GRANT** this unopposed motion. Relief is not final until the ruling is served on Plaintiff and a filed proof of service demonstrating that service.

Defendant Hitt is ordered to appear at the next hearing. The Court will inquire regarding her plans regarding representation and defense of this case.

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10. *Wiggan v. Bryan, et al*, Case No. CIVSB2431607  
Defendant's Motion to Set Aside Default Judgment  
8/27/26, 9:00 a.m., Dept. S-17

The Court is inclined to **DENY**. The motion is not timely under the mandatory provision of Code of Civil Procedure section 473(b) nor is it accompanied by the required proposed answer or an attorney affidavit.

Relief under section 473(b), may be based either on: (1) an "attorney affidavit of fault," in which event, relief is mandatory; or (2) declarations or other evidence showing "mistake, inadvertence, surprise or excusable neglect," in which event relief is discretionary. (Code Civ. Proc., § 473(b); *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25-26.) A trial court has broad discretion to vacate a default judgment, default, or order; however, said discretion can only be exercised if the moving party establishes a proper ground for relief, by proper procedure, and within certain time limits. (*Cruz v. Fagor America Inc.* (2006) 146 Cal.App.4th 488, 495.)

Relevant here, an application for relief from default under the mandatory provision of section 473(b), must be made "no more than six months after entry of judgment." (Code Civ. Proc., § 473(b).) The default was entered on February 10, 2025, and the interlocutory judgment was entered on July 24, 2025. Defendant filed his motion on June 4, 2026. Therefore, it is untimely.

Even in the alternative, the motion was not accompanied by a proposed answer, and there is no attorney affidavit in support of the motion. Defendant does not explain why he waited until June 4, 2026, to file his motion, which was ten months after he signed the agreement acknowledging that Gomez Law no longer represented him; thirteen months after he was present in court and informed that default was entered against him; and sixteen months after default was entered.

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11. *Torres v. City of Ontario, et al*, Case No. CIVSB2603509  
Defendants' Demurrer  
8/27/26, 9:00 a.m., Dept. S-17

### ***Tentative Rulings***

*As to the Request for Judicial Notice:* The Court would **GRANT** as to the Plea Form (Exh. A); the June 9, 2025 Minute Order (Exh. B); the sentencing transcript (Exh. C); the corrected July 15, 2025 Minute Order (Exh. D); and the docket report for FWV24000481 (Exh. E.). The Court would **DENY** as to the criminal complaint (Exh. F), as it is improperly made in reply and does not establish any matter properly at issue on demurrer.

*As to the Demurrer:* The Court would **OVERRULE**. A responsive pleading will be filed within 30 days.

### ***Case Summary***

This case centers on Plaintiff's interactions with law enforcement on February 2, 2024. After an argument with his significant other, Plaintiff left home. However, 9-1-1 calls were placed about him due to the dispute. As a result, police officers were dispatched to Plaintiff's home, and at around 5:40 p.m. officers encountered Plaintiff in his complex. Plaintiff alleges that he gave no reason to use force against him; however, he alleges that officers shot and tasered him. As such, he submitted a Government Tort Claim on October 20, 2025, and filed suit on February 2, 2026, alleging claims for (1) battery by a peace officer; (2) negligence; (3) Bane Act violation [Civ. Code, § 52.1]; and (4) Ralph Act violation [Civ. Code, § 51.7].

### ***Statement of the Law***

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on insufficient facts to constitute a cause of action, pursuant to Code of Civil Procedure section 430.10(e), should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

### ***Analysis***

*Battery & Negligence (1st & 2nd Causes)* – The gravamen of Defendants' argument here focuses on Plaintiff's arrest and later pleading of "no contest" to a felony violation of Penal Code section 71(a) (Section 71). Defendant argue that under *Heck* and *Yount*, Plaintiff cannot maintain his battery and negligence causes because, if he were to prevail, it would necessarily imply or demonstrate that the conviction under Section 71 was invalid.

In *Heck*, the United States Supreme Court held that "when a state prisoner seeks damages in a § 1983 suit, the district court must consider whether a judgment in favor of the plaintiff would necessarily imply the invalidity of his conviction or sentence; if it would, the complaint must be dismissed unless the plaintiff can demonstrate that the conviction or sentence has already been invalidated." (*Heck v.*

*Humphrey* (1994) 512 U.S. 477, 486.) Similarly, in *Yount*, the California Supreme Court, extended *Heck*'s reasoning to include state law tort claims: "[W]e cannot think of a reason to distinguish between section 1983 and a state tort claim arising from the same alleged misconduct." (*Yount v. City of Sacramento* (2008) 43 Cal.4th 885, 902.) "[W]e conclude that [*Heck*'s] analysis in the preceding sections applies equally to *Yount*'s common law claim for battery." (*Yount, supra*, 43 Cal.4th at p. 902.)

Thus, if Plaintiff's success on his civil claims would "necessarily imply the invalidity" of his Section 71 conviction, then his civil claims are barred. Defendants assert that Plaintiff's conviction establishes that he threatened officers with unlawful injury and that Plaintiff had the apparent ability to carry out his threat. Defendants argue that these facts establish that the at-issue officers were justified in using deadly force under Penal Code section 835a (Section 835a), because they reasonably believed Plaintiff intended to cause them immediate death or serious bodily injury. Thus, Defendants argue that a verdict in favor of Plaintiff on his battery and negligence claims would contradict the officers' belief that Plaintiff intended to cause them imminent death or serious bodily injury and would, therefore, invalidate Plaintiff's Section 71 conviction.

Plaintiff, for his part, counters that the record does not provide the facts necessary to establish the predicate for the conviction; so, there is no showing the successful prosecution of his claims will invalidate his Section 71 plea. More precisely, Section 835a does not allow for the use of deadly force based on a violation of Section 71. Rather, Section 71 only requires a threat of "unlawful injury" while Section 835a requires a showing of "imminent death or serious bodily injury." Plaintiff argues a violation of Section 71 does not *necessarily* permit the use of deadly force. The Court agrees.

A review of the record shows that Plaintiff's plea does not specify the acts that served as the predicate for Plaintiff's plea. There is no evidence showing what threats Plaintiff made, who the threats were directed toward, or what – if any – actions were taken by Plaintiff to carry out the threats. The record does not reflect that Plaintiff's conviction was based on Plaintiff's conduct showing he was an imminent threat to causing death or serious bodily harm to the police officers or anyone else. Given the above, Defendants have not shown Plaintiff's claims, here, are necessarily barred.

*Bane Act (3rd Cause)* – To prove a violation of Civil Code section 52.1 (Bane Act), a plaintiff must show that (1) the defendant by "threats, intimidation, or coercion" caused the plaintiff to reasonably believe that if plaintiff exercised his or her rights, the defendant would commit violence against him or her and the defendant had the apparent authority to carry out the threats; (2) the defendant intended to deprive the plaintiff of the enjoyment of the interests protected by the rights; (3) the plaintiff was harmed; and (4) defendant's conduct was a substantial factor in causing the harm. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 67; CACI 3066.)

Here, Defendants argue that, because the battery and negligence claims are barred, Plaintiff cannot establish a violation of the Bane Act. Thus, based on the rationale *supra* related to battery and negligence, the Court is inclined to overrule.

*Ralph Act (4th Cause)* – Under Civil Code section 51.7 (Ralph Act), a plaintiff must prove that (1) the defendant intentionally threatened violence against the plaintiff or his property; (2) a substantial motivating reason for defendant's conduct was its perception of plaintiff's actionable characteristic; (3) a reasonable person in plaintiff's position would have believed that defendant would carry out its threat; (4) a reasonable person in plaintiff's position would have been intimidated by defendant's

conduct; (5) the plaintiff was harmed; and (6) defendant's conduct was a substantial factor in causing the harm. (*Gavrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1291; CACI 3064.)

Here, Plaintiff alleges, upon information and belief, that one of the officers used deadly force against Plaintiff because he is a Latino male and the officer is biased against Latino men. Rather than taking the time to evaluate the situation, the officer immediately perceived Plaintiff as a threat due to Plaintiff's outward appearance, which was a substantial factor in his decision to use excessive force. Thus, Plaintiff alleges that the officer's actions were motivated by Plaintiff's protected characteristics. (Compl., ¶¶74-76, 78.) While less-than overly specific, the Court is inclined to find that Plaintiff has sufficiently pleaded the cause for a Ralph Act violation.

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12. *Romero v. Bridgestone Americas Tire Operations LLC, et al*, Case No. CIVSB2435208  
Defendant Impact's Demurrer to First Amended Complaint  
8/27/26, 9:00 a.m., Dept. S-17

### ***Tentative Ruling***

The Court would **OVERRULE**. A responsive pleading will be filed within 30 days.

### ***Case Summary***

This is a representative action for civil penalties pursuant to the Private Attorneys General Act (PAGA). Plaintiff alleges that he was employed by Bridgestone as an hourly-paid, non-exempt forklift driver from approximately 2015 to July 16, 2025. He further alleges that Defendant Impact was engaged in the business of supplying hourly-paid or non-exempt employees to Defendant Bridgestone. Plaintiff asserts that Impact employed, paid wages to, and maintained payroll records for the hourly-paid or non-exempt employees who were assigned to work for Bridgestone. On September 7, 2024, Plaintiff issued a notice to the Labor and Workforce Development Agency (LWDA) in anticipation of a PAGA claim. On November 22, 2024, he filed this instant action. The operative First Amended Complaint (FAC) was filed on April 1, 2026, seeking civil penalties pursuant to PAGA.

### ***Statement of the Law***

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on insufficient facts to constitute a cause of action, pursuant to Code of Civil Procedure section 430.10(e), should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

### ***Analysis***

Here, substantively, Defendant Impact argues that the FAC fails to establish Plaintiff Romero's standing as an aggrieved employee to bring a PAGA action against Defendant Impact because, even accepting